

KATSKE VS. SHASTA COUNTY BOARD OF SUPERVISORS, ET AL.

CASE NUMBER: 26CV-0209919

Tentative Ruling on Motion to Tax Costs: Petitioner Jennifer Katske moves for an order taxing the Memorandum of Costs filed by Intervenor Laura Hobbs, Deidre Holliday, Kari Chilson, Jim Burnett, and Richard Gallardo. Intervenor oppose the Motion.

The Court issued its Ruling on the First Amended Verified Complaint on March 26, 2026, sustaining the Intervenor's Demurrer without leave to amend. Intervenor timely filed their Memorandum of Costs on April 10, 2026, seeking \$3,422.17. The costs consist of \$3,084.25 in filing and motion fees, and \$337.92 in "Other" fees. The "Other" fees are broken down in the addendum as "costs to obtain court-filed documents due to opposing party's failure of service," which include copy fees and roundtrip mileage to the courthouse.

Requests for Judicial Notice: Plaintiff requests the Court take judicial notice of: 1) "Official Shasta County Board of Supervisors Meeting Recording April 21, 2026, Board of Supervisors Meeting," 2) GiveSendGo Fundraising Campaign "Measure B Stays on the Ballot!" 3) Lex Rex Institute Public Solicitation for Donations. The request is denied as to all three items, as they do not fall under a permissible category under Evidence Code § 452.

Merits of Motion: Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. CCP § 1032(b). A prevailing party includes a defendant in whose favor a dismissal is entered. CCP § 1032(a)(4). A Defendant includes a party who files an answer in intervention. CCP § 1032(a)(2). "An intervention takes place when a third person is permitted to become *a party* to an action or proceeding between other persons" (Italics added.) (Code Civ. Proc., § 387, subd. (a). (7) The purpose of allowing intervention is to protect others potentially affected by a judgment, thus obviating delay and multiplicity of suits. (*People v. Superior Court (Good)* (1976) 17 Cal.3d 732, 736; *County of San Bernardino v. Harsh California Corp.* (1959) 52 Cal.2d 341, 346.) The intervenor becomes a party to the action, with all of the same procedural rights and remedies of the original parties." *Catello v. I.T.T. General Controls* (1984) 152 Cal.App.3d 1009, 1013-1014. Here, the Court granted the Intervenor's Application for Leave to Intervene on March 5, 2026. Under the law, these Intervenor are Defendants in whose favor a dismissal was entered on March 26, 2026. Therefore, Intervenor are prevailing parties entitled to recover their costs.

Plaintiff challenges the entire Memorandum of Costs. Intervenor's Memorandum of Costs lists the following costs: Item 1: \$3,084.25 in filing and motion fees, and Item 15: \$337.92 in "Other" costs. The "Other" costs are broken down in the addendum as "costs to obtain court-filed documents due to opposing party's failure of service," which include copy fees and roundtrip mileage to the courthouse. Item 1, filing and motion fees, are expressly allowable under CCP § 1033.5(a)(1).

Regarding Item 15, "if an expense is neither expressly allowable under subdivision (a) nor expressly prohibited under subdivision (b), it may nevertheless be recovered if, in the court's discretion, it is "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." *Science Applications Internat. Corp. v. Superior Court* (1995) 39 Cal.App.4th 1095, 1103. Intervenor argue that the copying and retrieval fees are warranted because Plaintiff did not serve the Intervenor the First Amended Petition and supporting papers, which required them to obtain them from the court independently. (Decl. Haberbush ¶ 6.) The First Amended Petition was filed on March 2, 2026. Intervenor were not granted leave to intervene until March 5, 2026. Plaintiff therefore had no obligation to serve the Intervenor prior to their intervention in the case. By the time of the March 5, 2026, hearing, Intervenor had obtained the filings of their own accord and were ordered to file their response in intervention that same day. Based on the timeline of events, these costs which were incurred prior to intervention, were not necessary to the conduct of the litigation, but rather convenient or beneficial to its preparation. Therefore, the Court will tax costs as to Item 15, only.

The Motion is **GRANTED**, in part. Costs are reduced by \$337.92. Intervenor is entitled to recover \$3,084.25 in costs. Petitioner is to prepare the proposed order.

IN RE: LEACHMAN

CASE NUMBER: 26CV-0209974

Tentative Ruling on Petition for Change of Name: Petitioner Clayton William Leachman seeks to change his name to Clayton Brooks Crosby. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

EATMON, ET AL VS. LOCKWOOD, ET AL

CASE NUMBER: CVCV19-0191680

Tentative Ruling on Notice of Motion and Motion for Earnings Withholding Order: Judgment Creditors' Daniel Lockwood and Roseanne Lockwood seek an order to issue an earnings withholding order against the Judgment Debtor's spouse, pursuant to CCP section 706.109. Judgment Debtor Jason Eatmon was timely served by mail with the motion, and was additionally served by substitute service. Spouse Christine Eatmon was timely served by personal service.

Christine Eatmon has requested a continuance of the motion to allow additional time to seek counsel. Judgment Creditors oppose the request on the grounds that the request for continuance is procedurally improper, fails to establish good cause for a 60-day continuance, and fails to oppose the underlying Motion on the merits. Under the circumstances, the Court finds that granting a continuance would be in the interest of justice. This matter is continued to **Monday, July 20, 2026, 8:30 a.m. in Department 63** for hearing on the Notice of Motion and Motion for Earnings Withholding Order. Absent further clearing showing of good cause, the Court is unlikely to grant further continuances. Opposition and Reply deadlines will be per CCP § 1005(b) and be based on the new hearing date.

IN RE PARODI

CASE NUMBER: 25PB-0032864

Tentative Ruling on Petition to Approve Minor's Compromise: This Petition for Approval of Compromise of Claim for Minor is a settlement of minor Norah Parodi's claims from a motor vehicle accident on November 14, 2024. The minor's mother, Bethany Parodi, was appointed as the minor's Guardian ad Litem on April 1, 2025. California Rule of Court, Rule 7.950 states that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition contains the necessary information. The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. Hearing is thus needed on the Petition before it can be approved. The person seeking approval of the settlement on behalf of the minor and the minor are required to appear at hearing, unless good cause is presented for their non-appearance. CRC Rule 7.952. The Court will ask counsel to voir dire Petitioner regarding the following: the terms of the settlement and whether the Petitioner understands that once approved, the settlement is final and binding on the minor. Once satisfied, the Court intends to grant the Petition. If granted, the Court will execute the Order and schedule a hearing for review regarding confirmation purchase of annuity. **An appearance by the Petitioner is necessary on today's calendar.**

PEOPLE OF THE STATE OF CALIFORNIA VS. HUTCHINSON

CASE NUMBER: 25CVG-02154

Tentative Ruling on Motions to Set Aside Summary Judgment, Vacate Forfeiture, and Exonerate Bail: Real Party in Interest, Empire Bail Bonds, Inc. as bail agent for surety United States Fire Insurance Company, moves for an order to set aside the summary judgment, vacate the forfeiture, and exonerate the bond. The motion is made on the grounds that the Court lacked jurisdiction to enter summary judgment, that the Defendant was detained in federal authority rendering the performance of the bail bond impossible, on equitable principles of